

the settlor, must have the same construction as in the case of a legal estate executed (*g*).

4. **Rule in *Shelley's case* applicable to trusts.**—As the *rule in Shelley's case* is not one of construction, that is, of intention, but of law, and was established to remedy certain mischiefs, which, if heirs were allowed to take as purchasers, * would be introduced into feudal tenures; [*110] it might be thought, that, as trusts are wholly independent of tenure, they ought not to be affected by the operation of the rule; and the cases of *Withers v. Allgood* (*a*), and *Bagshaw v. Spencer* (*b*), seem to lend some countenance to the doctrine. But not to mention that Lord Hardwicke himself appears in *Garth v. Baldwin* (*c*) to have doubted the position advanced by him in *Bagshaw v. Spencer*, other subsequent authorities have now established the principle, that although the rule may not be equally *applicable* to trusts, it shall be equally *applied* (*d*).

But in order to vest the fee in the ancestor under this rule, the word “heir” must be used, not in the sense *persona*

(*g*) *Wright v. Pearson*, 1 Eden, 125; *Austen v. Taylor*, ib. 367; and see *Brydges v. Brydges*, 3 Ves. jun. 125; *Jervoise v. Duke of Northumberland*, 1 J. & W. 571.

(*a*) Cited in *Bagshaw v. Spencer*, 1 Ves. sen. 150; 1 Coll. Jur. 403.

(*b*) 1 Ves. sen. 142; 1 Coll. Jur. 378.

(*c*) 2 Ves. 646.

(*d*) *Wright v. Pearson*, 1 Eden, 128; *Brydges v. Brydges*, 3 Ves. 120; *Jones v. Morgan*, 1 B. C. C. 206; *Webb v. Earl of Shaftesbury*, 3 M. & K. 599; *Roberts v. Dixwell*, 1 Atk. 610; *West*, 536; *Britton v. Twining*, 3 Mer. 176; *Spence v. Spence*, 12 C. B. N. S. 199; *Cooper v. Kynock*, 7 L. R. Ch. App. 398; *Collier v. Walters*, 17 L. R. Eq. 252; *Hervey v. Hervey*, W. N. 1874, p. 41; *Drew v. Maslen*, W. N. 1874, p. 65; *Batteste v. Maunsell*, 10 L. R. Eq. 97, on App. 314; [*Re White and Hindle's Contract*, 7 Ch. D. 201.] *Coape v. Arnold*, 2 Sm. & Gif. 311, may appear to militate against the general rule, but the true ground of

the decision was this: The codicil was made for a particular purpose, viz., for securing the jointure, and as it confirmed the will in all other respects, the testator's intention evidently was, that after securing the jointure, the trustees of the codicil should convey the estate to the uses declared by the will. It was, therefore, an executory trust, and the question was not whether in mere equitable estates a life interest resulting to the heir-at-law would unite with a limitation to the heirs of his body, but whether according to the true construction of the will the settlement was not meant to be executed in such a form as to make the heirs of his body purchasers. In this light the question was one of intention, and not of legal operation. The case was subsequently affirmed on appeal by Lord Cranworth, and it is conceived substantially, though not in terms, upon the ground above indicated as the true principle: see 4 De G. M. & G. 574.